

HOUSE BILL 612

By Vaughan

AN ACT to amend Tennessee Code Annotated, Title 69,
Chapter 3, relative to permits.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 69-3-141(c), is amended by deleting the subsection and substituting the following:

(c) If the only factor that disqualifies an applicant for an aquatic resource alteration permit (ARAP) from having the activities for which a permit is sought covered under a general permit is the size of the area that the permit will apply to, the department shall exempt from compensatory mitigation an area equal in size to the area for which mitigation would not be required if the permit applicant qualified for coverage under a general permit.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.